IN THE NATIONAL COMPANY LAW TRIBUNAL
DIVISION BENCH (COURT– I) CHENNAI

ATTENDANCE CUM ORDER SHEET OF THE HEARING
HELD ON **27.06.2025** THROUGH VIDEO CONFERENCING

PRESENT: **HON'BLE SHRI. SANJIV JAIN, MEMBER (JUDICIAL)**
HON'BLE SHRI. VENKATARAMAN SUBRAMANIAM, MEMBER (TECHNICAL)

APPLICATION NUMBER	**:** CA(CAA)/41/CHE/2025
PETITION NUMBER	**:**
NAME OF THE PETITIONER(S)	**:** M/s. Grand Luxe Hotels Ltd
NAME OF THE RESPONDENTS	**:**
UNDER SECTION	**:** Sec 230 to 232 of CA, 2013

ORDER

Present: Ld. Counsel Shri. Ashwin Raman for the Applicant.

Vide separate order pronounced in Open Court, the application is allowed and the meetings are dispensed with.

Sd/-
(VENKATARAMAN SUBRAMANIAM)
MEMBER (TECHNICAL)

Sd/-
(SANJIV JAIN)
MEMBER (JUDICIAL)

MG

Date: 27.06.2025

IN THE NATIONAL COMPANY LAW TRIBUNAL, DIVISION BENCH - I, CHENNAI

CA(CAA)/41(CHE)/2025

Under Sections 230 to 232 of the Companies Act, 2013

In the matter of Scheme of Amalgamation and Arrangement between

GRAND LUXE HOTELS LIMITED
having its registered office at,
Chennai One, Pallavaram,
Thoraipakkam, 200ft road,
Thoraipakkam, Chennai-600097.

… Applicant-1/Demerged Company-1/ Transferor Company-1

GRAND LUXE HOTELS (COORG) PRIVATE LIMITED
having its registered office at,
Chennai One, Pallavaram,
Thoraipakkam, 200ft road,
Thoraipakkam, Chennai-600097.

…Applicant-2/Resulting Company

IG3 INFRA LIMITED
having its registered office at,
Chennai One, Pallavaram,
Thoraipakkam, 200ft road,
Thoraipakkam, Chennai-600097.

…Applicant-3/Demerged Company-2/ Transferee Company-1

ETL CORPORATE SERVICES PRIVATE LIMITED
having its registered office at,
Chennai One, Pallavaram,
Thoraipakkam, 200ft road,
Thoraipakkam, Chennai-600097.

… Applicant-4/Transferor Company-2

CHIDAATMA CONTRACTORS PRIVATE LIMITED
having its registered office at,
Plot No.198, 13th Cross Street
Sri Sai Nagar, Thoraipakkam,
Chennai-600097.

…Applicant-5/Transferor Company-3

KIAN PURE PRIVATE LIMITED
having its registered office at,
No.16, Radhakrishnan Salai,
Sri Devi Karumariamman Nagar,
Chennai, Pallikaranai, Tamil Nadu-600100.

…Applicant-6/Resulting Company-2

LARGER INFRASTRUCTURE PROJECTS MANAGEMENT PRIVATE LIMITED
having its registered office at,
Old No. 43/2, New No. 56,
Seethammal Road, Teynampet,
Chennai, Tamil Nadu, India, 600018.

…Applicant-7/Resulting Company-3

GRAND HOSPITALITY SERVICE PRIVATE LIMITED
having its registered office at,
Old No. 43/2, New No. 56,
Seethammal Road, Teynampet,
Chennai, Tamil Nadu, India, 600018

…Applicant-8/ Resulting Company-4

Order Pronounced on ***27th June, 2025***

CORAM

SANJIV JAIN, MEMBER (JUDICIAL)
VENKATARAMAN SUBRAMANIAM, MEMBER (TECHNICAL)

For Applicant(s): Mr. Pawan Jhabhak, Advocate

O R D E R

1. This is a Joint Company Application Viz., CA(CAA)/41(CHE)/2025 filed by the Applicant Companies, namely **Grand Luxe Hotels Limited** (for brevity "1st Applicant Company/ Demerged Company (1) / Transferor Company (1)"), **Grand Luxe Hotels (Coorg) Private Limited** (for brevity "2nd Applicant Company/ Resulting Company (1)"), **IG3 Infra Limited** (for

brevity " 3nd Applicant Company/ Transferee Company / Demerged Company (2)"), **ETL Corporate Services Private Limited** (for brevity "4nd Applicant Company/ / Transferor Company (2)"), **Chidaatma Contractors Private Limited** (for brevity "5st Applicant Company/ Transferor Company (3)"), **Kian Pure Private Limited** (for brevity "6st Applicant Company/ Resulting Company (2)") **Larger Infrastructure Projects Management Private Limited** (for brevity "7th Applicant Company/ Resulting Company (3)") and **Grand Hospitality Services Private Limited** (for brevity "8th Applicant Company/ Resulting Company (4)") and its Shareholders under section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Amalgamation and Arrangement (hereinafter referred to as the "SCHEME") proposed by the Applicant Companies herein with its Shareholders. The Scheme is placed at **Page No. 80-193** of the Application Typeset.

2. The Applicant Companies in this Company Application have sought for the following reliefs :-

	EQUITY SHAREHOLDERS	PREFERENCE SHAREHOLDERS	SECURED CREDITORS	UNSECURED CREDITORS
APPLICANT COMPANY 1/DEMERGED COMPANY (1) /TRANSFEROR COMPANY (1)	To Dispense with the meeting	To Dispense with the meeting	To Dispense with the meeting	To Dispense with the meeting
APPLICANT COMPANY 2/RESULTING COMPANY (1)	To Dispense with the meeting	N.A.	NIL	NIL
APPLICANT COMPANY 3/TRANSFEREE COMPANY/DEMERGED COMPANY (2)	To Dispense with the meeting	N.A.	To Dispense with the meeting	To Dispense with the meeting
APPLICANT COMPANY 4/TRANSFEROR COMPANY (2)	To Dispense with the meeting	N.A.	NIL	To Dispense with the meeting
APPLICANT COMPANY 5/TRANSFEROR COMPANY (3)	To Dispense with the meeting	N.A.	NIL	To Dispense with the meeting
APPLICANT COMPANY 6/RESULTING COMPANY (2)	To Dispense with the meeting	N.A.	NIL	To Dispense with the meeting
APPLICANT COMPANY 7/RESULTING COMPANY (3)	To Dispense with the meeting	N.A.	NIL	To Dispense with the meeting
APPLICANT COMPANY 8/RESULTING COMPANY (4)	To Dispense with the meeting	N.A.	NIL	To Dispense with the meeting

3. **OVERVIEW OF THE SCHEME**

a. This Scheme (as defined hereinafter) is prepared in terms of provisions of Section 230 to 232 and other applicable provisions of the Companies Act, 2013 and is divided into separate parts, which will be operationalized under the Scheme sequentially as described as under:

i. Demerger of Hotel Division (as defined hereinafter) of GLHL and vesting thereof in Grand Luxe Hotels (Coorg) Private Limited, in accordance with terms of this Scheme and pursuant to the provisions of section 230 to 232 and other applicable provisions of Companies Act, 2013 and in exchange of which equity shares will be issued by GLHCPL to the shareholders of GLHL;

ii. Amalgamation of Remaining GLHL, ETL Corporate and CCPL with and into IG3 in accordance with the terms of Scheme and pursuant to the provisions of section 230 to 232 and other applicable provisions of Companies Act, 2013 and consequently, and thereafter issue of equity shares of IG3 to the shareholders of GLHL, ETL Corporate and CCPL;

iii. Demerger of Agrotech Park (as defined hereinafter), Chengalpet Land Division 1 (as defined hereinafter) and Chengalpet Land Division 2 (as defined hereinafter) of IG3 and vesting thereof into KPPL, LIPMPL and GHSPL respectively in accordance with the terms of Scheme and pursuant to the provisions of section 230 to 232 and other applicable provisions of Companies Act, 2013 and in

exchange of which shares will be issued by KPPL, LIPMPL and GHSPL to the equity shareholders of IG3.

b. This Scheme (as defined hereinafter) provides for transfer by way of demerger of Hotel Division (as defined hereinafter) of the Demerged Company 1 to Resulting Company 1, and consequently issue of equity shares of Resulting Company 1 to the shareholders of the Demerged Company 1, and amalgamation of Transferor Companies with and into Transferee Company, and demerger of Agrotech Park (as defined hereinafter), Chengalpet Land Division 1 (as defined hereinafter) and Chengalpet Land Division 2 (as defined hereinafter) of the Demerged Company 2 to Resulting Company 2, Resulting Company 3 and Resulting company 4 respectively and consequently issue of equity shares of Resulting Company 2, Resulting Company 3 and Resulting Company 4 to the shareholders of the Demerged Company 2 pursuant to section 230 to 232 and other applicable provisions of Companies Act, 2013 in the manner provided under the Scheme. This Scheme has been drawn up to comply with the conditions as specified under section 2(19AA) and section 2(1B) of the Income-tax Act, 1961 such that:

   i. all the assets and properties of the Demerged Undertakings (as defined hereinafter), being transferred by the Demerged

Companies immediately before the demerger become the properties of the Resulting Companies {as defined hereinafter) respectively by virtue of the demerger;

ii. all the liabilities relatable to the Demerged Undertakings {as defined hereinafter) being transferred by the Demerged Companies {as defined hereinafter) immediately before the demerger become the liabilities of the Resulting Companies {as defined hereinafter) respectively by virtue of the demerger;

iii. all the assets, properties and labilities, if any, relatable to the Demerged Undertakings {as defined hereinafter) being transferred by the Demerged Companies {as defined hereinafter) are transferred to the Resulting Companies {as defined hereinafter) respectively at the values appearing in the books of account of the Demerged Companies immediately before the demerger;

iv. the Resulting Companies will issue shares to the shareholders of the Demerged Companies in consideration of the demerger on a proportionate basis;

v. The shareholders holding not less than three-fourths in value of the shares in the Demerged Companies (other than shares

already held therein immediately before the Demerger, or by a nominee for, in Resulting Companies or their respective subsidiaries) shall become shareholders of the Resulting Companies respectively by virtue of the demerger;

vi. the transfer of the Demerged Undertakings {as defined hereinafter) will be on a going concern basis;

vii. all the assets and the properties of Transferor Companies {as defined hereinafter) immediately before the amalgamation become the property of IG3 by virtue of the amalgamation;

viii. all the liabilities of Transferor Companies {as defined hereinafter) immediately before the amalgamation become the liabilities of 1G3 by virtue of the amalgamation; and

ix. the shareholders holding not less than three-fourths in value of the shares in Transferor Companies (other than shares already held therein immediately before the amalgamation by, or by a nominee for, the amalgamated company its subsidiary) become shareholders of Transferee Company by virtue of the amalgamation.

4. The **RATIONALE OF THE SCHEME** is as under:

1. Demerger of Hotel Division from GLHL into GLHCPL:

1.1 The Hotel Division of GLHL has matured significantly over the years and is now well-positioned to chart its own growth path in the fast-growing hospitality industry. To enable focused expansion, operational agility, and scalability, it is proposed to demerge the Hotel Division from GLHL and transfer it to GLHCPL.

1.2 This will allow GLHCPL to independently manage and grow the hospitality business, thus creating an entity better suited to capitalize on opportunities within the industry. Remaining GLHL will focus on its non-hospitality business operations primarily emphasised on infrastructure development services, while refining its strategies to drive growth and expansion in these sectors.

2. Amalgamation of Remaining GLHL, ETL Corporate and CCPL into IG3:

2.1 IG3's primary focus continues to be the construction and leasing of land or building, conceptualization, planning, designing and marketing of infrastructure facilities including Special Economic Zones. Remaining GLHL, ETL Corporate, and CCPL have similar business functions and shared objectives, which could be better managed under one unified structure. By amalgamating Remaining GLHL, ETL Corporate and CCPL with IG3, the group can streamline operations and centralize resources, leading to better integration and synergy across these businesses.

2.2 This amalgamation will enhance financial management, allow better allocation of resources, and simplify governance. Moreover, it will create a stronger entity that is better positioned to capitalize on synergies between the businesses, reduce administrative overheads, and consolidate financial strengths, paving the way for future growth and expansion.

3. Demerger of Agrotech Park from IG3 into KPPL:

3.1 The demerger of the Agrotech Park from IG3 to KPPL is driven by the need for specialized focus and management in the agro-tech sector, allowing KPPL to concentrate solely on promoting and developing modern agricultural practices.

3.2 This separation enables both entities to streamline their operations, allocate resources more efficiently, and pursue growth opportunities in their respective sectors. The demerger also enhances investor appeal by creating a dedicated platform for agro-tech investments, ensuring targeted growth and better access to capital for the Agrotech Park.

4. Demerger of Chengalpet Land Division 1 from IG3 to LIPMPL:

4.1 The Chengalpet Land Division 1 of IG3 will be demerged into LIPMPL, creating a distinct business entity that will concentrate solely on the 14.54 acres of land in Chengalpet (or Chengalpattu). This separation will enable LIPMPL to focus exclusively on its real estate development initiatives, allowing for greater operational flexibility and the ability to attract investments specific to its landholding, ensuring optimized growth and value creation in the real estate sector.

5. Demerger of Chengalpet Land Division 2 from IG3 to GHSPL:

5.1 The Chengalpet Land Division 2 of IG3 will be demerged into GHSPL. This will allow for a sharper focus on the real estate development activities specific to the 14.43 acres of land situated in Chengalpet (or Chengalpattu). It will provide greater operational efficiency, enabling the business to unlock value and attract targeted investments for growth in the real estate sector;

6. The proposed Composite Scheme of Arrangement is designed to optimize the organizational structure, enhance operational efficiencies, and unlock significant value for shareholders and creditors. The restructuring involves a series of demergers and mergers that will allow for more focused growth in each business segment, while simultaneously streamlining operations and enabling better management oversight.

5. It is stated that the (i) The Applicant Company-1 viz., **Grand Luxe Hotels Limited** is an Unlisted Public Limited Company which was incorporated on 19.09.2005 with the name and style 'ETL Land Holdings Limited'. The Name of the company was later changed to ETL Hospitality Services Limited and subsequently to Grand Luxe Hotels on 17.03.2010 with CIN: U70101TN2005PLC057540 in the State of Tamil Nadu. The Authorised/Issued/Subscribed and Paid up share capital of the Applicant Company-1/ Demerged Company (1) / Transferor Company (1) as on 30.11.2024 are as follows

Particulars	Rupees
Authorised share capital	
4,00,00,000 Equity Shares of Rs.10/- each	40,00,00,000/-
4,00,00,000 Preference Shares of Rs.10/- each	40,00,00,000/-
Total	80,00,00,000/-
Issued, subscribed and Paid up share capital	
4,00,00,000 Equity shares of Rs.10/-each fully paid-up	40,00,00,000/-
4,00,00,000 Preference Shares of Rs.10/- each	40,00,00,000/-
Total	80,00,00,000/-

(ii) The Applicant Company-2 viz., **Grand Luxe Hotels (Coorg) Private Limited** is a Private Limited Company and was incorporated on 23.06.2024, in the State of Tamil Nadu with CIN: U55101TN2024PTC172894. The Authorised and paid-up share capital of the Resulting Company (1) as on 30.11.2024 are as follows

Particulars	Rupees
Authorised share capital	
10,000 Equity Shares of Rs.10/- each	1,00,000/-
Total	1,00,000/-
Issued, subscribed and paid-up share capital	
10,000 Equity shares of Rs.10/- each	1,00,000/-
Total	1,00,000/-

(iii) The Applicant Company- 3 viz., **IG3 Infra Limited** is an Unlisted Public Limited Company incorporated under the Companies Act, 1956 on 04.02.2004 in the State of Tamil Nadu with CIN: U45203TN2004PLC052443. The Authorised and paid-up share capital of the Transferee Company / Demerged Company (2) as on 30.09.2024 are as follows

Particulars	Rupees
Authorised share capital	
98,50,00,000 Equity Shares of Rs.10/- each 21,50,00,000 Preference Shares of Rs.10/-	9,85,00,00,000/- 2,15,00,00,000/-
Total	12,00,00,00,000/-
Issued, subscribed and paid-up share capital	
52,73,39,941 Equity shares of Rs.10/-	5,27,33,99,410/-
Total	5,27,33,99,410/-

(iv) The Applicant Company-4 viz., **ETL Corporate Services Private Limited** is a Private Limited Company and was incorporated on 28.11.2006, in the State of Tamil Nadu with CIN: U74140TN2006PTC061611. The Authorised and paid-up share capital of the Transferor Company (2) as on 30.11.2024 are as follows

Particulars	Rupees
Authorised share capital	
2,50,000 Equity Shares of Rs.10/- each	25,00,000/-
Total	25,00,000/-
Issued, subscribed and paid-up share capital	
2,50,000 Equity shares of Rs.10/- each	25,00,000/-
Total	25,00,000/-

(v) The Applicant Company-5 viz., **Chidaatma Contractors Private Limited** is a Private Limited Company and was incorporated on 14.03.2020, in the State of Tamil Nadu with CIN: U45209TN2020PTC134883. The Transferor Company (3) was originally incorporated with the name "Shawnita Infra Private

Limited" but it was changed to "Chidaatma Contractors Private Limited"on 09.04.2020.The Authorised and paid-up share capital of the Transferor Company (3) as on 30.11.2024 are as follows

Particulars	**Rupees**
Authorised share capital	
10,000 Equity Shares of Rs.10/- each	1,00,000/-
Total	1,00,000/-
Issued, subscribed and paid-up share capital	
10,000 Equity shares of Rs.10/- each	1,00,000/-
Total	1,00,000/-

(vi) The Applicant Company-6 viz., **Kian Pure Private Limited** is a Private Limited Company and was incorporated on 17.10.2020, in the State of Tamil Nadu with CIN: U52609TN2020PTC138764. The Authorised and paid-up share capital of the Resulting Company (2) as on 30.11.2024 are as follows

Particulars	**Rupees**
Authorised share capital	
10,000 Equity Shares of Rs.10/- each	1,00,000/-
Total	1,00,000/-
Issued, subscribed and paid-up share capital	
10,000 Equity shares of Rs.10/- each	1,00,000/-
Total	1,00,000/-

(vii) The Applicant Company-7 viz., **Larger Infrastructure Projects Management Private Limited** is a Private Limited Company and was incorporated on 06.06.2008, in the State of Tamil Nadu with CIN:

U45200TN2008PTC068084. The Authorised and paid-up share capital of the Resulting Company (3) as on 30.11.2024 are as follows

Particulars	**Rupees**
Authorised share capital	
10,000 Equity Shares of Rs.10/- each	1,00,000/-
Total	1,00,000/-
Issued, subscribed and paid-up share capital	
10,000 Equity shares of Rs.10/- each	1,00,000/-
Total	1,00,000/-

(viii) The Applicant Company-8 viz., **Grand Hospitality Services Private Limited** is a Private Limited Company and was incorporated on 15.07.2008, in the State of Tamil Nadu with CIN: U55100TN2008PTC068571. The Authorised and paid-up share capital of the Resulting Company (4) as on 30.11.2024 are as follows

Particulars	**Rupees**
Authorised share capital	
1,00,000 Equity Shares of Rs.10/- each 60,00,000 Preference Shares of Rs.10/- each	10,00,000/- 6,00,00,000
Total	6,10,00,000/-
Issued, subscribed and paid-up share capital	
10,000 Equity shares of Rs.10/- each	1,00,000/-
Total	1,00,000/-

6. It is stated that this Application has been filed in relation to a Scheme of Amalgamation and Arrangement between Grand Luxe Hotels Limited and Grand Luxe Hotels (Coorg) Private Limited and IG3 Infra Limited and ETL

Corporate Services Private Limited and Chidaatma Contractors Private Limited and Kian Pure Private Limited and Larger Infrastructure Projects Management Private Limited and Grand Hospitality Services Private Limited and their respective Shareholders and Creditors.

7. Affidavits in support of the above application sworn in, on behalf of the Applicant Company-1, have been signed by Mr. Murugesan Ramamoorthy, the authorized signatory, on behalf of the Applicant Company-2, by Mrs. Unnamalai Thiagarajan, the authorized signatory, on behalf of the Applicant Company-3, by Ms. Rukmini Thiagarajan, the authorized signatory, on behalf of the Applicant Company-4, by Mr. A Gilbert Raj, the authorized signatory, on behalf of the Applicant Company-5, by Mr. R. Sabariganesan, the authorized signatory, on behalf of the Applicant Company-6, by Mr. Rooban B, the authorized signatory, on behalf of the Applicant Company-7, by Mrs. Unnamalai Thiagarajan, the authorized signatory and on behalf of the Applicant Company-8, by Ms. Rukmini Thiagarajan, the authorized signatory. The same are placed along with the Application at **Pg.65-79** of Applicant Companies typeset. It is also represented that the registered office of the Applicant Companies are situated in the State of Tamil Nadu and therefore are within the jurisdiction of this Tribunal.

8. We have perused the application and the connected documents/papers filed therewith including the Scheme contemplated by the Applicant companies.

9. The Applicant Companies have filed their Memorandum and Articles of Association *inter alia* delineating their object clauses at **Page Nos. 194-229, 285-313, 317-353, 429-453, 501-527, 564-578, 605-636, 660-678** respectively**.** The Applicant Companies have submitted their last available Audited Financial Statements for the year ended on 31.03.2024 and Provisional Financial Statement as at 30.11.2024 at **Page nos. 230-284, 314-316, 354-428, 454-500, 528-563, 579-604, 637-659** and **679-701** respectively of the typed set filed with the application.

10. The Board of Directors of the Applicant Companies vide meeting held on **02.12.2024** respectively have unanimously approved the proposed Scheme as contemplated above (The copies of resolutions passed thereon are placed on record by the applicant companies at **Page Nos. 702-709** as **Annexure 18.**

11. The Appointed date as specified in the Scheme is **01.12.2024.**

12. The Statutory Auditors of the Applicant Companies have examined the Scheme in terms of provisions of Sec. 232 of Companies Act, 2013 and the Rules made thereunder and certified that the Accounting Standards are in compliance with Section 133 of the Companies Act, 2013. The Certificates of the Statutory Auditors in this regard are placed at **Page Nos. 1309-1342**

as **Annexure 62** of the Applicant Companies typed set of Documents filed along with the application.

13. The Applicant Companies have filed a Memo providing further clarifications vide SR.No.2367 dated 17.06.2025. The Applicant Companies provided certificate on pre scheme and post scheme net worth of the respective Applicant Companies as on 30.11.2024 in relation to the Composite Scheme of Arrangement and Amalgamation.

Grand Luxe Hotels Limited (in Rs.)

Particulars	Pre-Demerger	Post- Demerger
Equity Share Capital	40,00,00,000	NIL
Preference Share Capital	40,00,00,000	
Other Equity	3,25,75,480	
Total Net-Worth	**83,25,75,480**	

Grand Luxe Hotels (Coorg) Private Limited (in Rs.)

Particulars	Pre-Merger	Post-Merger
Equity Share Capital	1,00,000	1,31,260
Other Equity	NIL	64,83,74,009
Total Net-Worth	**1,00,000**	**64,85,05,269**

IG3 Infra Limited (in Rs.)

Particulars	Pre-Scheme		Post-Scheme	
	Merger	Demerger	Merger	Demerger
Equity Share Capital	5,27,33,99,410	5,16,21,01,637	5,16,21,01,637	5,16,21,01,637
Other Equity	9,10,84,68,776	9,01,36,49,158	9,01,36,49,158	5,85,75,16,892
Total Net-Worth	**14,38,18,68,186**	**14,17,57,50,795**	**14,17,57,50,795**	**11,01,96,18,529**

ETL Corporate Services Private Limited (in Rs.)

Particulars	Pre-Merger	Post-Merger
Equity Share Capital	25,00,000	NIL
Other Equity	-12,60,70,519	
Total Net-Worth	**-12,35,70,519**	

Chidaatma Contractors Private Limited (in Rs.)

Particulars	Pre-Merger	Post-Merger
Equity Share Capital	1,00,000	NIL
Other Equity	-34,35,653	
Total Net-Worth	**-33,35,653**	

Kian Pure Private Limited (in Rs.)

Particulars	Pre-Merger	Post-Merger
Equity Share Capital	1,00,000	1,46,529
Other Equity	-32,806	3,08,56,52,627
Total Net-Worth	**67,195**	**3,08,57,99,156**

Larger Infrastructure Projects Management Private Limited (in Rs.)

Particulars	Pre-Merger	Post-Merger
Equity Share Capital	1,00,000	1,00,000
Preference Share Capital	NIL	24,332
Other Equity	-14,76,596	3,38,41,060
Total Net-Worth	**-13,76,596**	**3,39,65,392**

Grand Hospitality Services Private Limited (in Rs.)

Particulars	Pre-Merger	Post-Merger
Equity Share Capital	1,00,000	1,00,000
Preference Share Capital	NIL	24,332
Other Equity	-73,95,006	2,76,38,980
Total Net-Worth	**-72,95,006**	**2,77,63,312**

14. Taking into consideration the application filed by the Applicant Companies and the documents filed therewith as well as the position of law, this Tribunal issues the following directions: -

A. GRAND LUXE HOTELS LIMITED (APPLICANT 1/ DEMERGED COMPANY (1) / TRANSFEROR COMPANY (1))

I. EQUITY SHAREHOLDERS

(i) There are **7 (Seven)** Equity Shareholders, whose consent affidavits are placed at **Pgs. 787-832**. The Certificate issued by the Chartered Accountant certifying the list of Equity Shareholders is placed at **Pg. 785-786** of the typed set filed with the application. It has sought dispensation with holding of meeting.

(ii) Since it is represented by the Applicant Company - 1 that there are **7 (Seven)** Equity Shareholders in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with.***

II. PREFERENCE SHAREHOLDERS

(i) There is **1 (One)** Preference Shareholder, whose consent affidavit is placed at **Pgs.835-844**. The Certificate issued by the Chartered Accountant certifying the list of Preference Shareholder is placed at **Pg.833-834** of the typed set filed with the application. It has sought dispensation with holding of meeting.

(ii) Since it is represented by the Applicant Company - 1 that there is **1 (One)** Preference Shareholder in the Company whose consent by way of Affidavits has been obtained and is placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with.***

III. SECURED CREDITORS

(i) There is **1 (One)** Secured Creditor whose consent affidavit is placed at **Pgs.16-28** of the Additional typeset. The Certificate issued by the Chartered Accountant certifying the list of Secured Creditors is placed at

Pgs.1034-1038 of the typed set filed with the application. It has sought dispensation with holding of meeting.

(ii) Since it is represented by the Applicant Company - 1 that there is **1 (One)** Secured Creditor in the Company whose consent by way of Affidavit has been obtained and is placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with.***

IV. UNSECURED CREDITORS

(i) There are **92 (Ninety-Two)** Unsecured Creditors in the Applicant Company - 1. The Certificate issued by the Chartered Accountant certifying the list of Unsecured Creditors is placed at **Pg.1039-1048.** The consent given by the way of Affidavits by **9 (Nine)** Unsecured Creditors amounting to **99.82%** is placed at **Pg.1049-1107** of the typed set filed with the application. It has sought dispensation with holding of meeting.

(ii) Since it is represented by the Applicant Company - 1 that there are **9 (Nine)** Unsecured Creditors in the Company whose consents by way of Affidavits forming **99.82%** value have been obtained and are placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with.***

B. GRAND LUXE HOTELS (COORG) PRIVATE LIMITED (APPLICANT 2/ RESULTING COMPANY (1))

I. EQUITY SHAREHOLDERS

(i) There are **2 (Two)** Equity Shareholders, whose consent affidavits are placed at **Pgs.847-858**. The Certificate issued by the Chartered Accountant certifying the list of Equity Shareholders is placed at **Pg.845-846** of the typed set filed with the application. It has sought dispensation with holding of meeting.

(ii) Since it is represented by the Applicant Company - 2 that there are **2 (Two)** Equity Shareholders in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with.***

II. SECURED CREDITORS

(i) There are **NIL** Secured Creditors in the Applicant Company - 2. The Certificate issued by the Chartered Accountant certifying the list of Secured Creditor is placed at **Pg.1108-1112** of the typed set filed with the application. Since it is represented by the Applicant Company - 2 that there are **NIL** Secured Creditors, the necessity of convening, holding and conducting the meeting ***does not arise.***

III. UNSECURED CREDITORS

(i) There are **NIL** Unsecured Creditors in the Applicant Company - 2. The Certificate issued by the Chartered Accountant certifying the list of Secured Creditor is placed at **Pg.1113-1117** of the typed set filed with the application. Since it is represented by the Applicant Company - 2 that there are **NIL** Unsecured Creditors, the necessity of convening, holding and conducting the meeting ***does not arise.***

C. IG3 INFRA LIMITED (APPLICANT 3/ TRANSFEREE COMPANY / DEMERGED COMPANY (2))

I. EQUITY SHAREHOLDERS

(i) There are **12 (Twelve)** Equity Shareholders in the Applicant Company - 3. The Certificate issued by the Chartered Accountant certifying the list of Equity Shareholders is placed at **Pg.859-860.** The consent given by the way of Affidavits by **11 (Eleven)** Equity Shareholders amounting to

99.43% is placed at **Pg. 861-940** of the typed set filed with the application. It has sought dispensation with holding of meeting.

(ii) Since it is represented by the Applicant Company – 3 that there are **12 (Twelve)** Equity Shareholders in the Company out of whom **11 (Eleven)** Equity Shareholders have given consents by way of Affidavits forming **99.43%** value have been obtained and are placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with.***

II. SECURED CREDITORS

(i) There is **One (1)** Secured Creditor**,** whose consent affidavit is placed at **Pgs.1-15** of the Additional documents filed with the application. The Certificate issued by the Chartered Accountant certifying the list of Secured Creditor is placed at **Pgs.1118-1122**. It has sought dispensation with holding of meeting.

(ii) Since it is represented by the Applicant Company- 3 that there is **One (1)** Secured Creditor in the Company whose consent by way of Affidavit has been obtained and is placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with.***

IV. UNSECURED CREDITORS

(i) There are **Eleven (11)** Unsecured Creditor**s** whose consent affidavit is placed at **Pgs.1128-1196**. The Certificate issued by the Chartered Accountant certifying the list of Unsecured Creditors is placed at **Pgs.1123-1127** of the type set filed with the application. It has sought dispensation with holding of meeting.

(ii) Since it is represented by the Applicant Company- 3 that there are **Eleven (11)** Unsecured Creditors in the Company whose consents by way

of Affidavits have been obtained and are placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with.***

D. ETL CORPORATE SERVICES PRIVATE LIMITED (APPLICANT 4/ TRANSFEROR COMPANY (2))

II. EQUITY SHAREHOLDERS

(i) There are **5 (Five)** Equity Shareholders, whose consent affidavits are placed at **Pgs.943-976**. The Certificate issued by the Chartered Accountant certifying the list of Equity Shareholders is placed at **Pg.941-942** of the typed set filed with the application. It has sought dispensation with holding of meeting.

(ii) Since it is represented by the Applicant Company - 4 that there are **5 (Five)** Equity Shareholders in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with.***

II. SECURED CREDITORS

(i) There are **NIL** Secured Creditors in the Applicant Company - 4. The Certificate issued by the Chartered Accountant certifying the list of Secured Creditor is placed at **Pg.1197-1201** of the typed set filed with the application. Since it is represented by the Applicant Company - 4 that there are **NIL** Secured Creditors, the necessity of convening, holding and conducting the meeting ***does not arise.***

IV. UNSECURED CREDITORS

(i) There are **3 (Three)** Unsecured Creditors whose consent affidavits are placed at **Pgs.1206-1226**. The Certificate issued by the Chartered Accountant certifying the list of Unsecured Creditor is placed at **Pgs.1202-**

1205 of the type set filed with the application. It has sought dispensation with holding of meeting.

(ii) Since it is represented by the Applicant Company- 4 that there are **3 (Three)** Unsecured Creditors in the Company whose consent by way of Affidavit have been obtained and are placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with.***

E. CHIDAATMA CONTRACTORS PRIVATE LIMITED (APPLICANT 5/ TRANSFEROR COMPANY (3))

I. <u>EQUITY SHAREHOLDERS</u>

(i) There are **2 (Two)** Equity Shareholders, whose consent affidavits are placed at **Pgs.979-991**. The Certificate issued by the Chartered Accountant certifying the list of Equity Shareholders is placed at **Pg.977-978** of the typed set filed with the application. It has sought dispensation with holding of meeting.

(ii) Since it is represented by the Applicant Company - 5 that there are **2 (Two)** Equity Shareholders in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with.***

II. <u>SECURED CREDITORS</u>

(i) There are **NIL** Secured Creditors in the Applicant Company - 5. The Certificate issued by the Chartered Accountant certifying the list of Secured Creditor is placed at **Pg.1227-1231** of the typed set filed with the application. Since it is represented by the Applicant Company - 5 that there are **NIL** Secured Creditors, the necessity of convening, holding and conducting the meeting ***does not arise.***

IV. UNSECURED CREDITORS

(i) There are **3 (Three)** Unsecured Creditor**s** whose consent affidavits are placed at **Pgs.1236-1254**. The Certificate issued by the Chartered Accountant certifying the list of Unsecured Creditor is placed at **Pgs.1232-1235** of the type set filed with the application. It has sought dispensation with holding of meeting.

(ii) Since it is represented by the Applicant Company- 5 that there are **3 (Three)** Unsecured Creditor in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with.***

F. KIAN PURE PRIVATE LIMITED (APPLICANT 6/ RESULTING COMPANY (2))

I. EQUITY SHAREHOLDERS

(i) There are **2 (Two)** Equity Shareholders, whose consent affidavits are placed at **Pgs.994-1005**. The Certificate issued by the Chartered Accountant certifying the list of Equity Shareholders is placed at **Pg.992-993** of the typed set filed with the application. It has sought dispensation with holding of meeting.

(ii) Since it is represented by the Applicant Company - 6 that there are **2 (Two)** Equity Shareholders in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with.***

II. SECURED CREDITORS

(i) There are **NIL** Secured Creditors in the Applicant Company - 6. The Certificate issued by the Chartered Accountant certifying the list of Secured Creditor is placed at **Pg.1255-1261** of the typed set filed with the

application. Since it is represented by the Applicant Company - 6 that there are **NIL** Secured Creditors, the necessity of convening, holding and conducting the meeting ***does not arise.***

IV. UNSECURED CREDITORS

(i) There is **One (1)** Unsecured Creditor**,** whose consent affidavit is placed at **Pgs.1266-1271**. The Certificate issued by the Chartered Accountant certifying the list of Unsecured Creditor is placed at **Pgs.1262-1265** of the type set filed with the application. It has sought dispensation with holding of meeting.

(ii) Since it is represented by the Applicant Company- 6 that there is **One (1)** Unsecured Creditor in the Company whose consent by way of Affidavit has been obtained and is placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with.***

G. LARGER INFRASTRUCTURE PROJECTS MANAGEMENT PRIVATE LIMITED (APPLICANT 7/ RESULTING COMPANY (3))

III. EQUITY SHAREHOLDERS

(i) There are **2 (Two)** Equity Shareholders, whose consent affidavits are placed at **Pgs.1008-1019**. The Certificate issued by the Chartered Accountant certifying the list of Equity Shareholders is placed at **Pg.1006-1007** of the typed set filed with the application. It has sought dispensation with holding of meeting.

(ii) Since it is represented by the Applicant Company - 7 that there are **2 (Two)** Equity Shareholders in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with.***

II. SECURED CREDITORS

(i) There are **NIL** Secured Creditors in the Applicant Company - 7. The Certificate issued by the Chartered Accountant certifying the list of Secured Creditor is placed at **Pg.1255-1261** of the typed set filed with the application. Since it is represented by the Applicant Company - 7 that there are **NIL** Secured Creditors, the necessity of convening, holding and conducting the meeting ***does not arise.***

IV. UNSECURED CREDITORS

(i) There are **2 (Two)** Unsecured Creditor**,** whose consent affidavits are placed at **Pgs.1283-1297**. The Certificate issued by the Chartered Accountant certifying the list of Unsecured Creditor is placed at **Pgs.1279-1282** of the type set filed with the application. It has sought dispensation with holding of meeting.

(ii) Since it is represented by the Applicant Company- 7 that there are **2 (Two)** Unsecured Creditor in the Company whose consent by way of Affidavits have been obtained and are placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with.***

H. GRAND HOSPITALITY SERVICES PRIVATE LIMITED (APPLICANT 8/ RESULTING COMPANY (4))

IV. EQUITY SHAREHOLDERS

(i) There are **2 (Two)** Equity Shareholders, whose consent affidavits are placed at **Pgs.1022-1033**. The Certificate issued by the Chartered Accountant certifying the list of Equity Shareholders is placed at **Pg.1020-1021** of the typed set filed with the application. It has sought dispensation with holding of meeting.

(ii) Since it is represented by the Applicant Company - 8 that there are **2 (Two)** Equity Shareholders in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with.***

II. SECURED CREDITORS

(i) There are **NIL** Secured Creditors in the Applicant Company - 8. The Certificate issued by the Chartered Accountant certifying the list of Secured Creditor is placed at **Pg.1298-1304** of the typed set filed with the application. Since it is represented by the Applicant Company - 8 that there are **NIL** Secured Creditors, the necessity of convening, holding and conducting the meeting ***does not arise.***

IV. UNSECURED CREDITORS

(i) There are **3 (Three)** Unsecured Creditor**,** whose consent affidavits are placed at **Pgs.1309-1330**. The Certificate issued by the Chartered Accountant certifying the list of Unsecured Creditor is placed at **Pgs.1305-1308** of the type set filed with the application. It has sought dispensation with holding of meeting.

(ii) Since it is represented by the Applicant Company- 8 that there are **3 (Three)** Unsecured Creditor in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with.***

15. The Application stands **ALLOWED**. The Applicant Companies are directed to file Application for the Second Motion within a period of fourteen (14) days from the date of receipt of this Order.

-Sd-	**-Sd-**
VENKATARAMAN SUBRAMANIAN	**SANJIV JAIN**
MEMBER (TECHNICAL)	MEMBER(JUDICIAL)